

Ministry of Electronics and Information Technology, Stenographer, Limited Departmental Competitive Examination Rules, 2018

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Ministry of Electronics and Information Technology, Stenographer, Limited Departmental Competitive Examination Rules, 2018

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Ministry of Electronics and Information Technology, Stenographer, Limited Departmental Competitive Examination Rules, 2018

Rule

MINISTRY-OF-ELECTRONICS-AND-INFORMATION-TECHNOLOGY-STENOGRAPHER-LIMITED-DEPARTMENTAL-COMPETITIVE-EXAMINATION-RULES-2018 of 2018

Published on 8 February 2019

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Ministry of Electronics and Information Technology, Stenographer, Limited Departmental Competitive Examination Rules, 2018

Published vide Notification No. G.S.R. 111(E), dated 8.2.2019

Last Updated 18th February, 2019

G.S.R. 111(E). - In exercise of the powers conferred by the proviso to article 309 of the Constitution and in supersession

of the Ministry of Information Technology, Stenographer, Departmental Competitive Examination Rules, 2000, except as respects things done or omitted to be done before such supersession, the President hereby makes the following rules regulating the Limited Departmental Competitive Examination for promotion to the post of Stenographer in the Ministry of Electronics and Information Technology, namely: -

1.

Short title and commencement.

(1)

These rules may be called the Ministry of Electronics and Information Technology, Stenographer, Limited Departmental Competitive Examination Rules, 2018.

(2)

They shall come into force on the date of their publication in the Official Gazette.

2.

Definition.

- In these rules unless the context otherwise requires, -

(a)

"appointing authority" means the Director (Personnel) or Deputy Secretary (Personnel) to the Government of India, Ministry of Electronics and Information Technology;

(b)

"available vacancy" means a vacancy in the post of Stenographer's grade in the Ministry of Electronics and Information Technology which is required to be filled up on the basis of the results of the examination;

(c)

"crucial date" means the first day of January of the year of the vacancies for which such examination is held;

(d)

"examination" means the Limited Departmental Competitive Examination for promotion to the post of Stenographer held in the manner specified in the Schedule;

(e)

"recruitment year" means the period commencing from the 1st day of January and ending on the 31st day of December of the same year;

(f)

"Schedule" means the Schedule annexed to these rules;

(g)

"Scheduled Castes" and "Scheduled Tribes" shall have the same meanings respectively as assigned to them in clauses (24) and (25) of article 366 of the Constitution.

3.

Conditions of eligibility.

- Junior Secretariat Assistant in level-2 in the pay matrix (Rs. 19,900-63,200) in the Ministry of Electronics and Information Technology who have rendered a total of five years of approved service which should include at least four years of regular and continuous service in that level in the pay matrix on the crucial date shall be eligible to appear in the Limited Departmental Competitive Examination.

Note 1. - The approved service rendered in the grade, on the 1st day of the recruitment year, as the residency period will be counted for promotion.

Note 2. - For the purposes of this rule, the period of 'approved service' shall be calculated in the following manner, namely: -

(i)

in respect of an officer recruited directly to that grade, period or periods of regular service rendered in that grade, including period or periods of absence during which he would have held a post on regular basis in that grade but for his being on leave or otherwise not being available to hold such post, from the first day of the recruitment year, following the year in which the examination for direct recruitment was held;

(ii)

in respect of an officer recruited to that grade through departmental examination, period or periods of regular service rendered in that grade, including period or periods of absence during which he would have held a post on regular basis

in that grade but for his being on leave or otherwise not being available to hold such post, from the first day of the recruitment year for vacancies of which such examination was held;

(iii)

in respect of an officer recruited to that grade on the basis of length of service in the lower grade, period or periods of regular service rendered in that grade, including period or periods of absence during which he would have held a post on regular basis in that grade but for his being on leave or otherwise not being available to hold such post, from the first day of the recruitment year for which the recruitment was made:

Provided that where there is delay of more than ninety days in joining on appointment, in any of the cases mentioned in the sub-clauses (i), (ii), and (iii) above, such delay should not be due to any fault on the part of the officer.

Note 3. - Where juniors who have completed their qualifying or eligibility service are being considered for promotion, their seniors would also be considered provided they are not short of the requisite qualifying or eligibility service by more than half of such qualifying or eligibility service or two years, whichever is less, and have successfully completed probation period for promotion to the next higher grade along with their juniors who have already completed such qualifying or eligibility service.

4.

Holding of the examination.

(1)

The appointing authority shall notify the dates and place of the examination and number of available and anticipated vacancies assessed at the time of announcing the examination.

(2)

The examination shall be conducted after the expiry of at least thirty days from the date of notifying the vacancies in the manner specified in the Schedule which may be held before the 31st March of the recruitment year.

(3)

The number of vacancies reserved for the Scheduled Castes, the Scheduled Tribes and other special categories of person, if any, shall be clearly indicated in the notification.

5.

Results.

(1)

On the basis of the aggregate marks secured by the candidate in Part I and II of the examination, a merit list containing the names of the successful candidates in order of merit shall be notified, keeping in view the number of vacancies and anticipated vacancies, if any, falling in the recruitment year.

(2)

The standards of evaluation for candidates belonging to the Scheduled Castes and the Scheduled Tribes shall be as per the Government instructions from time to time.

(3)

The candidates for appointment against the available vacancies shall be considered in the order in which their names appear in the merit list prepared under sub-rule (1).

(4)

The merit list shall remain in operation till the notified vacancies are filled up or upto a period of 18 months from the date of its approval by the appointing authority or till next merit list is approved by the appointing authority, whichever is earlier.

6.

Appointment.

- The inclusion of the name of any candidate in the merit list shall not confer a right to appointment and he shall be appointed by the appointing authority only after satisfying itself that no vigilance or disciplinary case is either pending or contemplated against the candidate and after taking into account his placement in the merit list, the reservation of posts or such other requirements as may be laid down by statutory orders or rules issued by the Central Government, from time to time, in this regard.

7.

Removal of name from merit list on resignation, etc.

(1)

In case a candidate after appearing at the examination resigns from the service or whose services are terminated or who is appointed to an ex-cadre post or to any other service and does not have a lien on any post mentioned in rule 3, his name shall not be included in the merit list, or if included in the said merit list shall be struck off therefrom.

(2)

Where a candidate, whose name is included in the said merit list, is appointed to an ex-cadre post or is transferred to another Department of the Central Government with the permission of the appointing authority and continue to have a lien on any post mentioned in rule 3, shall not be appointed as Stenographer till he resumes the duties in the Ministry of Electronics and Information Technology on his initial post during the period the merit list remains in force:

Provided that his claim for proforma promotion may be considered by the appointing authority in accordance with the orders and rules of the Central Government, issued in this behalf from time to time.

8.

Penalty for impersonation or other misconduct.

- A candidate, who is or has been declared by the appointing authority to be guilty of -

(i)

obtaining support for his candidature by any means; or

(ii)

impersonation; or

(iii)

procuring impersonation by any person; or

(iv)

submitting fabricated documents or documents which have been tampered with; or

(v)

making statements which are incorrect or false or suppressing material information; or

(vi)

resorting to any other irregular or improper means in connection with his candidature for the examination; or

(vii)

using unfair means in the examinations hall; or

(viii)

misbehaving in the examination hall; or

(ix)

attempting to commit or, as the case may be, abetting the ministry of all or any of the acts specified in clauses (i) to (viii); may, in addition to the criminal proceedings, liable -

(a)

to be disqualified by the appointing authority from the examination; or

(b)

to disciplinary action, under the appropriate rules:

Provided that no penalty under this rule shall be imposed except after -

(i)

giving the candidate an opportunity of making such representation in writing as he may wish to make in that behalf; and

(ii)

taking the representation, if any submitted by the candidate within the period allowed to him, into consideration.

9.

Power to relax.

- Where the Central Government is of the opinion that it is necessary or expedient to do so, it may, by order and for reasons to be recorded in writing, relax any of the provisions of these rules with respect to any class or category of persons.

10.

The decision of the Central Government with regard to the acceptance of the application of a candidate and his eligibility or otherwise for admission to the examination shall be final.

Schedule

(See rule 4)

The examination shall be conducted in the following two parts, namely: -

Part I ? Stenography Test:

(a)

This test shall consist of dictation either in English or in Hindi at a speed of 80 words per minute for 10 minutes.

(b)

The candidates who opt to take Stenography test in English will be required to transcribe the dictated passage in 50 minutes and those who opt to take the Stenography test in Hindi will be required to transcribe the dictated passage in 65 minutes only on computer.

(c)

The Stenography test will carry a maximum of 100 marks.

Part II ? 1. Assessment of Annual Performance Appraisal Reports: -

(a)

This part shall carry a maximum of 100 marks.

(b)

The Annual Performance Appraisal Reports of the candidates shall be scrutinised for the service period reckoned for promotion and marks will be accordingly allotted by the Departmental Promotion Committee.

(c)

The minimum qualifying marks in the Annual Performance Appraisal Reports of each year during the residency period will not be lower than the benchmark prescribed for promotion to the post of Stenographer.

2. The Departmental Promotion Committee referred to in sub-paragraph (b) of paragraph 1 shall consist of the following persons, namely:-

(1)

Director (Personnel) or Deputy Secretary
(Personnel) or Joint Director (Personnel) or Joint Director,
Ministry of Electronics and Information Technology

- Chairman;

(2)

Deputy Director, Ministry of Electronics and
Information Technology

- Member;

(3)

Under Secretary or equivalent to the Government
of India from Ministry or Department or an Organisation other
than the Ministry of Electronics and Information Technology

- Member.

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